

TENTATIVE RULINGS

June 15, 2026

	Case Name	Tentative
101	2023-01355797 Arie vs. Ford Motor Company	Motion for Summary Judgment and/or Adjudication No tentative issued.
102	2024-01388052 Stachel vs. Ford Motor Company	Motion for Summary Judgment and/or Adjudication The Court denies Defendant Ford Motor Company's Motion for summary judgment or alternatively adjudication of the three remaining claims in Plaintiff Kevin Stachel's First Amended Complaint (FAC). <u>Reply Separate Statement</u> Defendant's reply includes a separate statement "response". California Rules of Court, rule 3.1350 does not contemplate a reply separate statement. Defendants did not obtain prior permission from the Court to file the additional separate statement. (See ROA 170.) Accordingly, the document was not considered. <u>Evidentiary Objections</u> Defendant objects to the additional separate statement of facts. Objection nos. 1-29 are overruled. To preserve an objection to evidence, the party must object to the evidence itself rather than merely to separate statements of fact or to procedural aspects such as a separate statement in opposition to summary judgment. (See <i>e.g. Hodjat v. State Farm Mutual Automobile Ins. Co.</i> (2012) 211 Cal.App.4th 1, 8; Rule of Court 3.1354(b).) The Court overrules each objection to Counsel Yu and Plaintiff's declarations. The Court notes that Defendant uses the same type of repair history documents introduced through its attorneys, without authentication or a business records exception delineated. (See Liu, Esq. Decl., ¶16, Ex. 5: "Attached hereto as Exhibit 5 is a true and correct copy of the Standard Claims List reflecting repairs to Plaintiff's FMC_STACHEL000012-000015.") Defendant does not argue that the records are not what Plaintiff purports them be from the authorized dealership or that it did not receive them in discovery. The Court considers both sides records from the dealership of the vehicle's repair history. Defendant objects to evidence of post-warranty repairs as irrelevant. But they are relevant to show outstanding nonconformities at the time the warranty ended. <u>Legal Standard</u> "[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) A "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. . . ." (<i>Ibid.</i>) "A

prima facie showing is one that is sufficient to support the position of the party in question.” (*Id.* at p. 851.)

A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) The scope of this burden is determined by the allegations of the plaintiff's complaint. (*FPI Development v. Nakashima* (1991) 231 Cal.App.3d 367, 381-382 [pleadings serve as the outer measure of materiality in a summary judgment motion]; *580 Folsom Associates v. Prometheus Development Co.* (1990) 223 Cal.App.3d 1, 18-19 [defendant only required to defeat allegations reasonably contained in the complaint].) The motion may not be granted or denied on issues not raised by the pleadings. (*Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1258; *Nieto v. Blue Shield of Calif. Life & Health Ins. Co.* (2010) 181 Cal.App.4th 60, 74.)

Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at p. 850.) To meet this burden, the plaintiff must present substantial and admissible evidence creating a triable issue. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 163.) Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. (*Doe v. Salesian Society* (2008) 159 Cal.App.4th 474, 481; *Bushling v. Fremont Med. Center* (2004) 117 Cal.App.4th 493, 510.)

Merits

Plaintiff's first cause of action is brought under California Civil Code section 1793.2(d)(2), which states, in pertinent part, as follows:

"If the manufacturer or its representative in this state is unable to service or repair a new motor vehicle, as that term is defined in paragraph (2) of subdivision (e) of Section 1793.22, to conform to the applicable express warranties after a reasonable number of attempts, the manufacturer shall either promptly replace the new motor vehicle in accordance with subparagraph (A) or promptly make restitution to the buyer in accordance with subparagraph (B)."

(Civ. Code § 1793.2(d)(2).)

The courts take a broad and expansive view as to what constitutes a qualifying repair attempt under section 1793.2(d)(2):

... [T]he only affirmative step the Act imposes on consumers is to 'permit[] the manufacturer a reasonable *opportunity* to repair the vehicle.' [] Whether or not the manufacturer's agents choose to take advantage of the opportunity, or are unable despite that opportunity to isolate and make an effort to repair the problem, are matters for which the consumer is not responsible."

(*Oregel v. Am. Isuzu Motors, Inc.* (2001) 90 Cal.App.4th 1094, 1103–1104 (emphasis in original), "There was sufficient evidence to support the conclusion Oregel satisfied the presentation element by, on six different occasions, bringing the car in and requesting that Ron Baker repair the oil leak.")

Defendant argues that Plaintiff never presented the vehicle for repair of an issue under warranty on more than one occasion. (Separate Statement of Undisputed Fact (SSUF) 2-4, 7-16.)

But the Court finds that Plaintiff has shown triable issues of material fact in this regard. (See Additional Disputed Facts (ADF) 4-30.)

Under California law, repairs performed pursuant to a recall count as repair opportunities under section 1793.2(d)(2). (See *Donlen v. Ford Motor Co.* (2013) 217 Cal. App. 4th 138, 141 (“The first warranty repair, in August of 2005 at 11,618 miles, occurred pursuant to a recall notice plaintiff received from Ford. The recall concerned the truck’s transmission.”))

On Reply, Defendant emphasizes that there must be two reports of nonconformities for the same issue. (See *Robertson v. Fleetwood Travel Trailers of Cal., Inc.* (2006) 144 Cal.App.4th 785, 799 (stating: “at a minimum there must be more than one opportunity to fix the nonconformity[.]” implying there must be at least two attempts to fix the same issue); *Donlen, supra*, 217 Cal.App.4th at p.152, (listing elements and stating the number of repair attempts must be related to the same nonconformity)).

But Plaintiff has shown that the same defect was at issue at least twice during the warranty period: both the June 4–7, 2018 and April 30 – May 4, 2020 visits involved engine oil leak issues. There were continuing issues with low and leaking oil after the warranty expired, raising an inference sufficient for summary judgment that the nonconformity was not repaired.

If Defendant takes issue with a repair being considered one to a nonconformity, this was not discussed in the Motion and no evidence was provided of the same. There is no defined “nonconformity” or evidence presented to show that the repairs were “independent” in the moving papers; or to show that oil leaking/low oil is not related to the nonconformity alleged in the FAC. (See FAC, ¶124.)

Thus, the Motion is denied as to the first cause of action/ Issue 1.

Plaintiff's second cause of action is brought under section 1793.2(b), which states as follows:

Where those service and repair facilities are maintained in this state and service or repair of the goods is necessary because they do not conform with the applicable express warranties, service and repair shall be commenced within a reasonable time by the manufacturer or its representative in this state. Unless the buyer agrees in writing to the contrary, the goods shall be serviced or repaired so as to conform to the applicable warranties within 30 days. Delay caused by conditions beyond the control of the manufacturer or its representatives shall serve to extend this 30-day requirement. Where delay arises, conforming goods shall be tendered as soon as possible following termination of the condition giving rise to the delay.

(Civ. Code § 1793.2(b).)

Thus, section 1793.2(b) can be violated either when a defendant (1) fails to commence repairs within a reasonable time, or (2) fails to conform the vehicle to warranty within 30 days (the “30-day rule”). (*Kirzhner v. Mercedes-Benz USA, LLC* (2020) 9 Cal. 5th 966, 984.

Defendant only addresses one of the two possible basis for this claim. (See FAC, ¶157.)

		Moreover, Plaintiff has shown a triable issue of material fact as to the length of time to repair the oil leak/low oil issue. (ADF 8, 14, 16, 17, 25, 26.) Thus, the Motion is denied as to the second cause of action/ Issue 2. Plaintiff's third cause of action is brought under Section § 1793.2(a)(3). This statute requires Defendant to "[m]ake available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period." (Civ. Code § 1793.2(a)(3).) Defendant argues that Plaintiff cannot establish his third cause of action for the alleged violation of Civil Code § 1793.2(a)(3) because Plaintiff has no evidence that Ford failed to make available to authorized service and repair facilities sufficient service literature and replacement parts. The Court finds that Defendant has not met its moving burden. It is not enough for defendant to show merely that plaintiff "has no evidence" on a key element of plaintiff's claim. Defendant must also produce evidence showing plaintiff <i>cannot reasonably obtain</i> evidence to support that claim. (<i>Gaggero v. Yura</i> (2003) 108 Cal.App.4th 884, 891; <i>Zoran Corp. v. Chen</i> (2010) 185 Cal.App.4th 799, 808.) Defendant does not satisfy its burden of proof by producing discovery responses that do not exclude the possibility that plaintiffs may possess or <i>may reasonably obtain</i> evidence sufficient to establish their claim. (<i>Weber v. John Crane, Inc.</i> (2006) 143 Cal.App.4th 1433, 1441-1442.) A plaintiff's unawareness of facts to support a claim does not necessarily show the claim "cannot be established" where those facts are not likely to have been known to plaintiff. (<i>Villa v. McFerren</i> (1995) 35 CA4th 733, 749.) Thus, the Motion is denied as to the third cause of action/ Issue 3. Defendant is ordered to serve notice.
104	2021-01204953 Yang vs. Evan Paul Motorcars	Motion to Be Relieved as Counsel of Record Before the Court is Troy Schell, Esq., John Nuelle, Esq., and Schell Nuelle LLP's Motion to be relieved as counsel for Defendant Evan Paul EA Auto Leasing LLC. There is no proposed order. The relevant rule of court says that the proposed order relieving counsel must be prepared on the <i>Order Granting Attorney's Motion to Be Relieved as Counsel--Civil</i> (form MC-053) and must be lodged with the court with the moving papers. The order must specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known. If no hearing date is presently scheduled, the court may set one and specify the date in the order. After the order is signed, a copy of the signed order must be served on the client and on all parties that have appeared in the case. The court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court. (Cal. Rules of Ct., Rule 3.1362(e).) Counsel is ordered to file a proposed order, filled out completely, including all future hearing dates, and serve it on Plaintiff's Counsel and Defendant at least 16 Court days prior to the continued hearing date.